

IN THE COUNTY CIVIL COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC
Plaintiff,

vs.

File No. 2025-CC-3927

KATHERINE SHANNON,
PATRICK MARCUS ST. CLAIR, and
ANY UNKNOWN PARTY IN POSSESSION,
Defendants.

RESPONSE TO MOTION FOR DEFAULT AND EVICTION

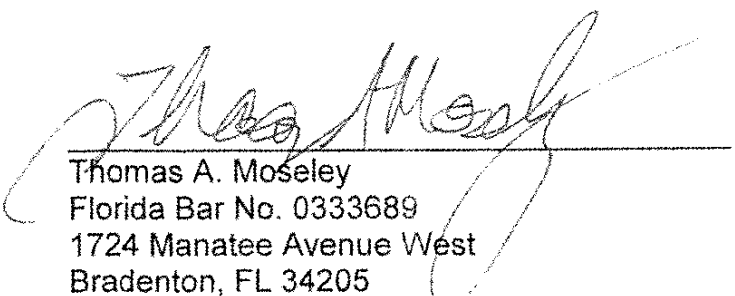
Thomas A. Moseley as Limited Counsel for Defendant, KATHERINE SHANNON ("Shannon") files this response and states:

1. Katherine Shannon resided in the Shannon Funeral Home until its sale.
2. Her financial advisor determined the Defendant Shannon's only long term financial option was to live in a mobile home. Her current monthly rent is approximately \$875.00 a month.
3. Defendant Shannon appeared on January 11, 2026, at the undersigned's office with the Order Setting Eviction Hearing for January 14, 2026, eviction hearing. Defendant indicated that she had no knowledge or understanding of the reason for the letter. The undersigned believes that Defendant had no knowledge or understanding or both of this pending proceeding.
4. All responses filed in this matter on Katherine Shannon's behalf have been filed by her son, Defendant, Patrick St. Clair ("St. Clair").
5. Defendant Shannon has sufficient funds with her financial advisor to pay the monthly rent to Plaintiff. Her financial advisor has agree to set up a monthly transfer to the Plaintiff for the rent.
6. Defendant has deposited \$2,837.73 into the registry of the Court and is willing to deposit such additional sums as are necessary to bring the rent current.
7. On or about November 5, 2024, Defendant St. Clair was arrested for Battery on his mother, Defendant Shannon. Case number 2024MM03395AX ("Criminal Case").

8. In the Criminal Case, Plaintiff filed a letter outlining the history of violence of the Defendant St. Clair not only against his but mother but also against other park residents.
9. In the Criminal Case, Plaintiff notified the Court of its intent to trespass Defendant St. Clair out of the park, but either failed or refused to do so. A copy of such correspondence is attached as Exhibit A.
10. Trespassing the Defendant St. Clair out of the park would have cured Defendant Shannon's alleged default under the lease.
11. Defendant St. Clair has a history of staying with family members and refusing to leave unless evicted and a history of physical violence. See attached Exhibit B. Such letter also indicated a history of Defendant Shannon's mental illness.
12. The eviction of Defendant St. Clair would benefit the Defendant Shannon. He left and did not return to another family members' home after eviction.
13. The question before the Court is whether a Defendant who is a victim of domestic violence and suffering from mental illness should become homeless because she failed to evict her abuser or is such an Order unconscionable.

Wherefore, the undersigned prays that this Court deny the eviction of Defendant Katherine Shannon, and evict Defendant Patrick St. Clair or grant a continuance to allow her to engage an attorney to present evidence to this Court regarding her mental status, status as a domestic violence victim, and entitlement to an accommodation under applicable law or such other additional relief as this Court deems just or meet.

this 19 day of January, 2026

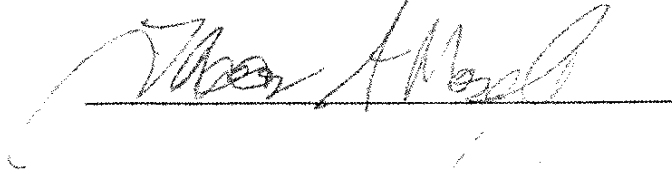


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Attorney for Defendant, Katherine Shannon

[Certificate of Service on Next Page]

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the Response to Motion for Default and Eviction has been electronically filed with the e-filing portal Pursuant to Rule 2.516 Florida Rules of Judicial Administration and served on the following: Attorney for Plaintiff, WILLIAM C. PRICE, III, Esquire via email at: wcp3@wcpricelaw.com, and Defendant(s), KATHERINE SHANNON, PATRICK ST. CLAIR & ANY UNKNOWN PARTY(s) IN POSSESSION at - 909 9th Ave. E., Lot#45, Palmetto, FL 34221 at katherine.shannon50@gmail.com, woodsnwaterlivin@gmail.com.

A handwritten signature in black ink, appearing to read "William C. Price, III", is written over a horizontal line.

CASE # 2024-MM003395AX

Colonial Manor MHC, Holdings LLC.
900 9th Ave E Palmetto, FL 34221

941-722-3191 office

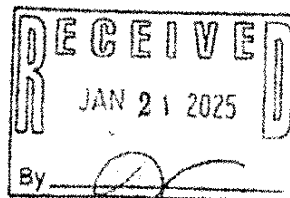
Lot 45

01/02/2025

To whom it may concern:

It has come to our attention that Mr. Patrick St Clair is now and has been incarcerated since 11/04/2024. We have knowledge that he has been a menace to our community to include but not limited throwing bricks and or heavy rocks through his neighbor's windows. He also has had the local police department called on him several times due to issue with his mother and in fact is being held on charges against elderly. Mr. St Clair has never been approved to live in the park therefore we will not allow him to come back into the park or stay in his mother's home. Our intent is to trespass him out of the park.

Regards,
Cheryl Peake
Resident Manager



2025 JAN 23 PM 1:11

EXHIBIT

A

January 19, 2025

The Honorable Melissa Gould
In the County Court of the 12th Judicial Circuit
in and for Manatee County, FL
C/O Ms. Lori Jakanski, Judicial Assistant
Manatee County Judicial Center
1051 Manatee Avenue West
Bradenton, FL 34205

FILED FOR JUDGE
2025 JAN 23 PM 6:16

REFERENCE CASE #: 2024MM003395AX

Dear Judge Gould:

This letter is to implore the Court's special consideration while determining the sentencing for Patrick Marcus St. Clair. Our hope is to obtain the Court's assistance to facilitate the help and treatment needed for Patrick to lead a productive and healthy lifestyle, and become independent of his Mother. Patrick needs treatment for anger, paranoia, excessive marijuana use, and possibly other drugs affecting his behavior and mental state, that we may not be aware of.

Back ground information:

Almost every member of our family has repeatedly tried to assist Patrick by either allowing Patrick to stay at our home, or by helping him find employment. Every attempt has been unsuccessful as noted below.

His sister, Shannon St. Clair allowed him to reside at her home in Georgia for approximately two years. For a time Patrick worked, but his behaviour ultimately turned into a bad situation and they asked him to leave since he did not honor the terms of their agreement for him to stay there. Shannon's young son was witnessing his unpredictable behavior, and for the sake of her family, Shannon finally asked him to leave. Patrick refused to leave, and after calling the local authorities they were forced to spend money to have him legally evicted.

Patrick's cousin, Christopher Whiten, supported him by helping Patrick obtain employment at a car dealership. Patrick was unable to complete the training necessary for the position, so the job never materialized.

Patrick's uncle, Ray Shannon, hired Patrick to help lay a hard wood floor in our home to try to motivate him to work in construction of some type, and earn some money. Patrick came once or twice to work, then claimed he was ill, and his truck was in need of repair, so he could not continue. In a second effort to help, Ray gave him \$1700 to repair his truck. Patrick agreed to work off the money for the truck repair. We never saw or heard from him again after the truck was repaired.

After leaving Georgia, Patrick returned to Florida. His Mother, [REDACTED] resided in an apartment owned by Ray Shannon. Ray indicated that Patrick was not allowed to reside in the apartment if he returned to Bradenton, due to the problems he caused in Georgia. Patrick parked his truck elsewhere, and secretly moved in with his Mother, against Ray's wishes.

EXHIBIT B

The property was later sold, and [REDACTED] and Patrick moved to Colonial Manor Trailer Park. Patrick was never approved to reside at the park since he was not 55 or older, so the Park Manager has been asking [REDACTED] to make him leave, with no success after 2-3 years of his occupancy. Patrick has convinced his Mother that he is "too sick to work" and unable to live on his own. He sleeps, remains under the influence, and avoids contact with others most of the time.

Patrick assaulted his brother in another incident in downtown Bradenton. We believe there is record of a no-contact order from this call made to the Bradenton Police Dept.

[REDACTED] also has mental and physical issues that are becoming very serious. She was injured during a recent skirmish with Patrick, resulting in his recent arrest. Both mother and son need rehab and medical attention. Recently we have been unable to speak to [REDACTED] as she is currently in treatment at Serenity Place.

[REDACTED] previously indicated to us that she can no longer support Patrick, neither emotionally nor financially, and because he has been asked not to return to Colonial Manor. The situation with them living together has turned toxic for both of them.

Colonial Manor stated that Patrick's truck and the unauthorized camper he has been sleeping in be removed or they will tow them. Patrick is not allowed to return to Colonial Manor or he will be trespassed. Ray Shannon took care of the removal of the vehicles and they are stored on a secure lot. Please see the attached letters we have received from Colonial Manor.

If released, Patrick will be homeless. We know he will not be able to live on his own as he needs medical help for his depression, drug use and we suspect he suffers from some type of bi-polar disorder. Patrick's Mother suffers from the same symptoms and illness.

We wonder if you can help us by ordering appropriate evaluation and treatment for Patrick, as part of the conditions for his release from jail. We have all tried to help him but his condition just keeps getting worse. We would all be most grateful, especially his Mother.

From

Judy Shannon

Judy Shannon

On behalf of the Shannon and St. Clair families

(941) 812-0450

CC: Jennifer Christen Block, Esquire
Public Defender
cblock@pd12.org

EXHIBIT B